

Arvind Kumar vs State Of U.P. Thru. Prin. Secy. Revenue ... on 26 September, 2023

Author: Saurabh Lavania

Bench: Saurabh Lavania

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Neutral Citation No. - 2023:AHC-LK0:62444

Court No. - 18

Case :- WRIT - B No. - 845 of 2023

Petitioner :- Arvind Kumar

Respondent :- State Of U.P. Thru. Prin. Secy. Revenue Lko. And 6 Others

Counsel for Petitioner :- Lav Upadhyay,Ved Prakash Sharma

Counsel for Respondent :- C.S.C.,Mulayam Singh Yadav,Sanjay Kumar Yadav

Hon'ble Saurabh Lavania,J.

1. Heard.

2. This petition under Article 226 of the Constitution of India has been filed challenging the order(s) dated 01.08.2015, 06.11.2017 and 24.03.2023 passed by the Tehsildar, Tehsil-Nawabganj, District-Barabanki (opposite party No.4), Sub-Divisional Magistrate, Tehsil-Nawabganj, District-Barabanki (opposite party No.3) and Board of Revenue, Lucknow, U.P. (opposite party No.2), respectively.

3. The claim of the petitioner is basically based upon the order dated 01.04.2017 passed by the Civil Judge, (S.D.), Lucknow in Misc. Case No.93C/2012, which was instituted under Section 372 of the Indian Succession Act, 1925 (in short "Act of 1925") and based upon the same, the petitioner in this petition says that as the succession certificate was issued, as such, the petitioner is entitled to get his name mutated in the property of late Nattha Ram.

4. It is for the reason that in the aforesaid case, the court was of the view that the father of the petitioner was Nattha Ram and Chandravati, mother of the petitioner, was not legally wedded wife of Nattha Ram and considering the same as also Clause (i) of Section 5 of Hindu Marriage Act, 1955, the court came to the conclusion that the petitioner, opposite party No.5-Smt. Indrani@Kunha Devi (wife of Late Nattha Ram) and daughters of Nattha Ram, namely Tara Devi and Preeti are entitled to succession certificate and ordered accordingly.

5. It would be apt to indicate that a succession certificate is granted for limited purpose and a court granting succession certificate does not decide the question of title.

6. The claim of the petitioner and his mother namely, Chandravati was opposed before the revenue court of first instance i.e. Court of Tehsildar, Nawabganj, District-Barabanki, by stating that the mother of the petitioner was not legally wedded wife of late Nattha Ram and in the service record of Nattha Ram, the name of the mother of the petitioner has not been recorded and that one Sant Prasad is the father of the petitioner and Preeti and also that late Nattha Ram during his lifetime executed a 'Will' in favour of opposite party No.5-Smt.Indrani@Kunha Devi, the legally wedded wife of late Nattha Ram, and further, before the Tehsildar the documentary evidence viz. compromise deed dated 26.11.2014, order of Family Court dated 04.12.2014, Certificate issued by the Gram Pradhan concerned, Voter ID Card, Affidavit, Insurance Certificate issued by the Electricity Department, Death certificate, Nominee certificate and Certificate issued by the Executive Engineer concerned as also the copy of Khatauni were also placed on record and oral evidence was also adduced.

7. After considering the evidence on record and respective claim of the parties, the claim of the petitioner was rejected by the revenue court of first instance i.e. the Court of Tehsildar, Nawabganj, District-Barabanki, vide order dated 01.08.2015.

8. The order dated 01.08.2015 was affirmed vide order dated 06.11.2017 passed in Appeal No. 95/67/45 (Year 2017) (Smt. Chandravati & Others vs. Smt. Indrani @ Kunha Devi), which was filed under Section 210 of U.P. Land Revenue Act, 1901 (in short "Act of 1901"). Thereafter, a revision was filed registered as Case No. REV/25/2018/Barabanki, Computerized Case No. R201804120025 (Arvind Kumar vs. Smt. Indrani), which was filed under Section 219 of the Act of 1901. The Revisional Authority vide order dated 24.03.2023 dismissed the revision after observing that the revisionist-petitioner can seek declaration of his rights by instituting a suit for declaration.

9. In the aforesaid background of the case, the present petition has been filed.

10. Mutation proceedings are summary in nature and they do not decide any right or title between the parties; rather they are drawn only for fiscal purposes.

11. Furthermore, the order passed in mutation proceedings are always subject to declaration of rights which may be sought by the parties concerned by instituting a regular suit.

12. Section 40A of the U.P. Land Revenue Act, 1901, which was applicable earlier, as also Section 39 of U.P. Revenue Code, 2006, which is applicable w.e.f. 11.02.2016, make it clear that no mutation order shall debar any person from establishing his rights in the land by means of a regular suit.

13. Further, Mutation of a property in revenue record does not create or extinguish title nor has it any presumptive value on title. It only enables the person in whose favour mutation is ordered to pay the land revenue. The mutation proceedings do not adjudicate the rights of the parties and orders passed in mutation proceedings are always subject to adjudication by competent Court.

14. Considering the aforesaid particularly that the applicant has lost from all the three revenue courts and there is an allegation that the petitioner is the son of one Sant Prasad and also that a court granting succession certificate does not decide the question of title and the petitioner is at liberty to seek declaration of his rights regarding the property left by late Nattha Ram, I am not inclined to interfere in this petition, which is disposed of with liberty to the petitioner to institute a regular suit seeking declaration of his rights within two months from today before appropriate Court/Forum.

15. In regard to interim relief, it is provided that if an application seeking interim relief is preferred by the petitioner before the Court/Authority concerned in the proceedings initiated by the petitioner, the Court/Authority concerned shall consider and dispose of the same as early as possible, say within a period of three months from the date of preferring the application seeking interim relief after providing proper opportunity of hearing to the parties concerned.

16. It is further provided that in case a suit is filed within the aforesaid period and this fact is brought to the notice of the concerned revenue authority, then the said revenue authority shall indicate the details of suit in the revenue record. It is for the reason that the entry of details of the suit in revenue records would avoid further litigation, which can be on account of transferring the property in issue or by creating charge over the same.

17. It is further directed that in case the petitioner institute any suit, the defendants therein will cooperate with the proceedings and shall not seek any unnecessary adjournments.

Order Date :- 26.9.2023 Raj